

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----
SAMUEL CLARKE,

Plaintiff,

-- against --

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER JOHN
SWOFFORD Shield # 12809 of the 77th Precinct,
OFFICER DAVID MCCALL Shield # 12403 of the
77th Precinct, and NEW YORK CITY POLICE
OFFICERS "JOHN DOES 1- 4", PERSONS
EMPLOYED BY NEW YORK CITY POLICE
DEPARTMENT,Defendants.

X

SUMMONS

:

Index No.: _____

:

Date Filed: _____

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Plaintiff designates

:

Kings County
as the Place of Trial

:

The Basis of venue is based
on CPLR § 504(3)

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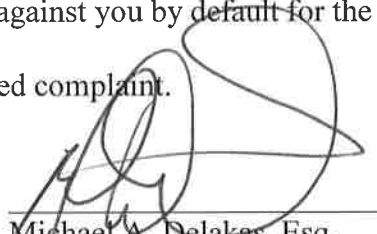
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
June 26, 2015

 Michael A. Delakas, Esq.
 ATESHOGLOU & AIELLO, P.C.
 Attorneys for Plaintiff
 SAMUEL CLARKE
 11 Park Place, Suite 1715
 New York, New York 10007
 (212) 545-1740
 File No.: FA-7028-NN

To:

CITY OF NEW YORK, Claim No.: 2015PI010616
NEW YORK CITY POLICE DEPARTMENT
OFFICER JOHN SWOFFORD Shield # 12809 of the 77th Precinct
OFFICER DAVID MCCALL Shield # 12403 of the 77th Precinct

		X
SAMUEL CLARKE,		<u>VERIFIED COMPLAINT</u>
	:	
Plaintiff,	:	Index No.:
	:	
-- against --	:	
	:	
CITY OF NEW YORK, NEW YORK CITY	:	
POLICE DEPARTMENT, OFFICER JOHN	:	
SWOFFORD Shield # 12809 of the 77 th Precinct,	:	
OFFICER DAVID MCCALL Shield # 12403 of the	:	
77 th Precinct, and NEW YORK CITY POLICE	:	
OFFICERS "JOHN DOES 1- 4", PERSONS	:	
EMPLOYED BY NEW YORK CITY POLICE	:	
DEPARTMENT,	:	
	:	
Defendants.	:	
		X

1. That at all pertinent times, Plaintiff was and is a resident of County of Kings, City and State of New York.
2. That at all pertinent times, Defendant City of New York (hereinafter “CITY”) was and is a municipal corporation incorporated under the laws of New York State.
3. That at all pertinent times, Defendant New York City Police Department (hereinafter “NYPD”) was and is an agency of Defendant CITY.

4. That at all pertinent times, Defendant OFFICER JOHN SWOFFORD (hereinafter the "P.O. Swofford") was and is an employee of Defendant NYPD.

5. That all pertinent time, Defendant P.O. Swofford was and is an employee of Defendant CITY.

6. That at all pertinent times, Defendant OFFICER DAVID MCCALL (hereinafter the "P.O. McCall") was and is an employee of Defendant NYPD.

7. That all pertinent time, Defendant P.O. McCall was and is an employee of Defendant CITY

8. That at all pertinent times, Defendants "John Does 1-4" (hereinafter the "Officers") were and are employees of Defendant NYPD.

9. That at all pertinent times, Defendant Officers were and are employees of Defendant CITY.

10. That at all pertinent times, Defendant CITY operated, and presently operates Defendant NYPD.

11. That at all pertinent times, Defendant CITY controlled, and presently controls Defendant NYPD.

12. That at all pertinent times, Defendant CITY managed, and presently manages Defendant NYPD.

13. Plaintiff filed a Notice of Claim in accordance with General Municipal Law Sections 50(e) and (I) on or about April 10, 2015. The Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

14. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

15. This action is being commenced within one year of the incident which gives rise to the action.

16. On or about July 6, 2014 at or near 959 St. Marks Avenue, County of Kings, City and State of New York at approximately 2:00 a.m., Plaintiff was arrested without probable cause. Plaintiff was verbally abused and illegally searched by Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers. Furthermore, Plaintiff was maced and struck with batons while handcuffed by Defendants. Defendants commenced a prosecution against Plaintiff without probable cause or justification, causing Plaintiff to be incarcerated for a period in excess of seven (7) days. Said prosecution was instituted and continued with malice and bad faith and deliberate indifference to Plaintiff's rights. Said action under Docket No. 2014KN050840 is to be dismissed and sealed on July 28, 2015.

17. At all times during the aforesaid illegal and improper stop and arrest of Plaintiff, Plaintiff was in the custody of Defendants.

18. That Plaintiff was illegally and improperly stopped, arrested, assaulted and battered by Defendants through no fault or negligence of his own.

19. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND IMPRISONMENT**

20. The allegations set forth in paragraphs "1" through "19" inclusive are incorporated herein as if fully set forth.

21. Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers intended to cause the arrest, seizure and imprisonment of Plaintiff without a lawful warrant and without probable cause.

22. Defendants knew, or should have known, that the conduct engaged in would result in the false imprisonment of Plaintiff.

23. Plaintiff was aware of such confinement and did not consent to said confinement.

24. The aforementioned confinement was not privileged in any way and was without legal justification.

25. Defendants CITY and NYPD are responsible and liable for the acts of Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers done within the scope of their employment under the doctrine of *respondeat superior*.

26. As a direct and proximate cause of Defendants' false arrest, seizure and imprisonment of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

27. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR ASSAULT AND BATTERY**

28. The allegations set forth in paragraphs "1" through "27" inclusive are incorporated herein as if fully set forth.

29. Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers intended to make bodily contact with Plaintiff.

30. Defendants knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.

31. Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers did in fact make offensive, bodily contact with Plaintiff.

32. Plaintiff was aware of such bodily contact and did not consent to said bodily contact.

33. The aforesaid bodily contact by Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers against Plaintiff was offensive to Plaintiff.

34. Defendants CITY and NYPD are responsible and liable for the acts of Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers done within the scope of their employment under the doctrine of *respondeat superior*.

35. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

36. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A THIRD CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTION DISTRESS**

37. The allegations set forth in paragraphs "1" through "36" inclusive are incorporated herein as if fully set forth.

38. That Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers intended to make offensive, bodily contact with Plaintiff.

39. Defendants knew, or should have known, that the conduct engaged in would result in assault and battery to Plaintiff.

40. Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers did in fact make offensive, bodily contact with Plaintiff.

41. Said offensive, bodily contact was extreme and outrageous, which exceeded all bounds usually tolerated by a decent society.

42. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish which had a disabling effect on Plaintiff.

43. Defendants NYC and NYPD are responsible for and liable for the acts of Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers done within the scope of their employment through the doctrine of *respondeat superior*.

44. As a direct and proximate cause of Defendants' intentional infliction of emotional distress, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further

pecuniary damages and legal costs, all to Plaintiff's damages in the amount which exceeds the jurisdictional limitations of the courts and in an amount to be determined at a trial of this action.

45. That the conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION**

46. The allegations set forth in paragraphs "1" through "45" inclusive are incorporated herein as if fully set forth.

47. That Defendants CITY and NYPD failed to exercise reasonable care in hiring Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers; therefore, breaching their duty to Plaintiff as well as to the public to exercise reasonable care in their hiring of employees.

48. That Defendants CITY and NYPD should have known of the propensity of Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers to commit injurious acts.

49. That Defendants CITY and NYPD were negligent in failing to properly train and supervise its employees, more specifically Defendant P.O. Swofford, Defendant P.O. McCall and Defendant Officers.

50. Defendants CITY and NYPD are responsible and liable for the acts of Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers done within the scope of their employment under the doctrine of *respondeat superior*.

51. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

52. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FIFTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION**

53. The allegations set forth in paragraphs "1" through "52" inclusive are incorporated herein as if fully set forth.

54. That Defendants arrested Plaintiff and initiated criminal proceedings despite the knowledge that Plaintiff had committed no crime.

55. That said prosecution was instituted and continued with malice and bad faith and deliberate indifference to Plaintiff's rights.

56. That there was no probable cause for the aforesaid arrest and criminal proceedings.

57. That said malicious prosecution was terminated in favor of Plaintiff with all charges against Plaintiff being dismissed.

58. As a direct and proximate cause of Defendants' malicious prosecution of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

59. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION
FOR NEGLIGENCE**

60. The allegations set forth in paragraphs "1" through "59" inclusive are incorporated herein as if fully set forth.

61. Defendants' actions in causing the aforesaid assault, battery, arrest, seizure, imprisonment and malicious prosecution of Plaintiff were in breach of the duty of due care owed to Plaintiff. Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers acted negligently and in disregard for the procedures and safeguards, which are the standard for the arrest and lawful stop of a citizen, in arresting Plaintiff in the absence of reasonable suspicion or probable cause. Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers further breached their duty of care to investigate before affecting the stop and seizure of a citizen and in their continued prosecution of Plaintiff.

62. That Defendants CITY and NYPD are responsible and liable for the acts of Defendant P.O. Swofford, Defendant P.O. McCall, and Defendant Officers done within the scope of their employment under the doctrine of *respondeat superior*.

63. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, physical injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

64. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, OFFICER JOHN SWOFFORD Shield # 12809 of the 77th Precinct, OFFICER DAVID MCCALL Shield # 12403 of the 77th Precinct, and NEW YORK CITY POLICE OFFICERS "JOHN DOES 1-4" PERSONS EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
June 26, 2015



Michael A. Delakas, Esq.
ATESHOGLOU & AIELLO, P.C.
Attorneys for Plaintiff
SAMUEL CLARKE
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7028-NN

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

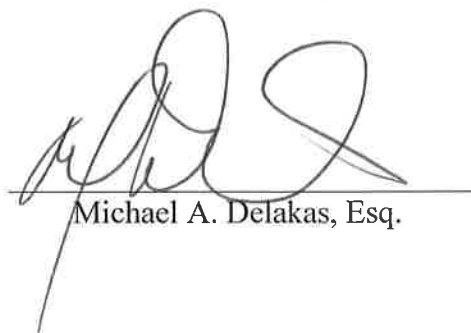
I am associated with Ateshoglou & Aiello, P.C., the attorneys of record for Plaintiff.

I have read the foregoing COMPLAINT, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Ateshoglou & Aiello, P.C. maintains its offices.

Dated: New York, New York
June 26, 2015



Michael A. Delakas, Esq.